

1 ENGROSSED SENATE
2 BILL NO. 1794

By: Stanley and Kirt of the
Senate

3 and

4 Roe of the House

5
6
7 An Act relating to mental health; creating the
8 Oklahoma Behavioral Health Vacancy Registry Act;
9 providing short title; defining terms; requiring
10 establishment of certain behavioral health vacancy
11 registry; describing registry; requiring registry to
12 include certain dedicated forensic competency module;
13 mandating certain participation and reporting;
14 requiring certain updates and accurate reporting;
15 allowing registry access and placement requests by
16 authorized referral sources; imposing certain
17 requirements and restrictions on covered facilities;
18 stating certain grounds for corrective action; making
19 registry participation voluntary for hospitals;
20 authorizing, requiring, and prohibiting certain acts
21 by hospitals; providing certain construction;
22 authorizing certain audits and administrative
23 remedies; directing confidentiality of registry data
24 and compliance with privacy laws; authorizing certain
public reporting; requiring issuance of certain
request for proposals; imposing certain requirements
and restrictions related to request for proposals;
directing promulgation of rules; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-111.1 of Title 43A, unless
there is created a duplication in numbering, reads as follows:

1 This act shall be known and may be cited as the "Oklahoma
2 Behavioral Health Vacancy Registry Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-111.2 of Title 43A, unless
5 there is created a duplication in numbering, reads as follows:

6 As used in this act:

7 1. "Available bed" or "available treatment capacity" means a
8 staffed and operational treatment slot, within the covered
9 facility's staffed capacity, that may be assigned to a consumer
10 consistent with the covered facility's licensed level of care and
11 written admission and exclusionary criteria;

12 2. "Covered facility" means a facility, other than a hospital
13 or hospital-based psychiatric unit, that is licensed or certified in
14 this state and authorized to accept consumers for:

15 a. emergency detention, protective custody, or assessment
16 as provided by Sections 1-110 and 5-207 of Title 43A
17 of the Oklahoma Statutes, or

18 b. court-ordered competency evaluations and competency
19 restoration services as described in subsection C of
20 Section 3 of this act;

21 3. "Licensed capacity" means the maximum number of beds or
22 treatment slots a covered facility is licensed or certified to
23 operate;
24

1 4. "Referral source" means a facility, provider, court, law
2 enforcement agency, crisis services provider, or other entity
3 authorized by the Department of Mental Health and Substance Abuse
4 Services to request placement through the registry created under
5 this act; and

6 5. "Staffed capacity" means the number of beds or treatment
7 slots that are operational and supported by sufficient staffing to
8 safely admit and treat consumers.

9 SECTION 3. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1-111.3 of Title 43A, unless
11 there is created a duplication in numbering, reads as follows:

12 A. Subject to the availability of funding, the Department of
13 Mental Health and Substance Abuse Services shall establish and
14 maintain a secure, electronic, statewide behavioral health vacancy
15 registry to expedite placements associated with:

16 1. Emergency detention, protective custody, or assessment as
17 provided by Sections 1-110 and 5-207 of Title 43A of the Oklahoma
18 Statutes; or

19 2. Court-ordered competency evaluations or competency
20 restoration services as described in subsection C of this section.

21 B. The registry shall provide near real-time information
22 regarding available beds and available treatment capacity at covered
23 facilities in this state.

1 C. The registry shall include a dedicated forensic competency
2 module to support court-ordered competency evaluations and
3 competency restoration services conducted pursuant to Sections
4 1175.1 through 1175.6a of Title 22 of the Oklahoma Statutes,
5 including referrals arising from findings of incompetency to stand
6 trial and orders for treatment to restore competency, in compliance
7 with all applicable state laws and any applicable state or federal
8 consent decree.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1-111.4 of Title 43A, unless
11 there is created a duplication in numbering, reads as follows:

12 A. Each covered facility shall participate in the behavioral
13 health vacancy registry and report, in the manner prescribed by
14 rules promulgated by the Board of Mental Health and Substance Abuse
15 Services:

- 16 1. Licensed capacity and staffed capacity;
- 17 2. Current available beds or available treatment capacity;
- 18 3. Population served, age range, and level of care;
- 19 4. Whether the facility accepts placements associated with
20 emergency detention, protective custody, or assessment as provided
21 by Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or
22 court-ordered competency evaluations and competency restoration
23 services as described in subsection C of Section 3 of this act;
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1 5. Admission limitations based on clinical capability or safety
2 requirements; and

3 6. Contact information for placement coordination available on
4 a twenty-four-hour basis.

5 B. 1. Covered facilities shall update registry information
6 upon a material change in availability and at intervals established
7 by the Board through rule.

8 2. A covered facility shall ensure reported availability
9 accurately reflects available beds or available treatment capacity
10 that is staffed and capable of accepting a placement at the time
11 reported.

12 C. 1. An authorized referral source may access the registry
13 for placement purposes. The registry shall allow an authorized
14 referral source to submit a placement request or reservation for an
15 available bed at a covered facility.

16 2. A covered facility shall respond to a registry placement
17 request within the time period established by the Board through rule
18 and shall document acceptance or denial in accordance with rules
19 promulgated by the Board. A registry reservation confirmed by a
20 covered facility shall be honored for the time period established by
21 the Board through rule unless:

22 a. material clinical information changes,

23 b. the consumer no longer meets the facility's written
24 admission criteria, or

1 c. the consumer meets the facility's written exclusionary
2 criteria.

3 D. A covered facility:

4 1. Shall apply its written admission criteria and written
5 exclusionary criteria in a consistent and nondiscriminatory manner;
6 and

7 2. Shall not, except for documented clinical or safety reasons,
8 refuse admission of an otherwise appropriate consumer when the
9 registry shows available treatment capacity and the consumer meets
10 the facility's written admission criteria and does not meet the
11 facility's written exclusionary criteria for placement under
12 Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or
13 Sections 1175.1 through 1175.6a of Title 22 of the Oklahoma
14 Statutes.

15 E. A pattern or practice of refusals by a covered facility
16 inconsistent with reported available treatment capacity or written
17 admission or exclusionary criteria, including selective acceptance
18 designed to avoid higher-acuity or forensic consumers, may
19 constitute noncompliance subject to review and corrective action by
20 the Department of Mental Health and Substance Abuse Services under
21 Section 6 of this act.

22 SECTION 5. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1-111.5 of Title 43A, unless
24 there is created a duplication in numbering, reads as follows:

1 A. Participation in the behavioral health vacancy registry by
2 hospitals and hospital-based psychiatric units shall be voluntary
3 and on an opt-in basis, except as otherwise required by contract or
4 federal law. A participating hospital or hospital-based psychiatric
5 unit may elect to do one or both of the following:

6 1. Report staffed capacity and available bed information to the
7 registry; or

8 2. Accept placement requests through the registry under
9 standards established by rule or contract.

10 B. A hospital or hospital-based psychiatric unit that elects to
11 participate in the registry shall make good-faith efforts to keep
12 registry information reasonably current; however, delays
13 attributable to direct patient care responsibilities or completion
14 of intake or admission processes shall not constitute a violation of
15 this subsection.

16 C. A hospital or hospital-based psychiatric unit participating
17 in the registry shall not, solely by virtue of such participation,
18 be deemed a covered facility for the purposes of this act.

19 D. With respect to a hospital or hospital-based psychiatric
20 unit, receipt of a placement request through the registry does not
21 constitute acceptance of a patient, does not create a duty to accept
22 transfer of a patient, and does not create a transfer agreement.
23 Any evaluation, stabilization, admission, or transfer decision shall
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1 remain subject to the Emergency Medical Treatment and Labor Act
2 (EMTALA) and applicable state law.

3 E. Nothing in this act shall be construed to expand, limit,
4 replace, or conflict with a hospital's obligations under EMTALA.
5 Hospitals participating in the registry shall remain subject to
6 EMTALA regardless of registry participation.

7 SECTION 6. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1-111.6 of Title 43A, unless
9 there is created a duplication in numbering, reads as follows:

10 A. The Department of Mental Health and Substance Abuse Services
11 may audit behavioral health vacancy registry submissions and
12 responses by covered facilities for accuracy, timeliness, and
13 consistency with written admission criteria and written exclusionary
14 criteria.

15 B. If the Department determines that a covered facility has
16 failed to report accurately, respond timely, or comply with this act
17 or rules promulgated under this act, the Department may require a
18 corrective action plan and may impose administrative remedies as
19 provided by law.

20 SECTION 7. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1-111.7 of Title 43A, unless
22 there is created a duplication in numbering, reads as follows:

23 A. The behavioral health vacancy registry shall not include
24 personally identifiable consumer health information.

1 B. All registry data collection and use shall comply with
2 applicable state and federal privacy laws, including the Health
3 Insurance Portability and Accountability Act of 1996 (HIPAA) and 42
4 C.F.R., Part 2 as applicable.

5 C. Registry data, including facility-submitted denial reasons
6 and response information:

7 1. Shall be confidential and shall be used only for placement
8 coordination, system oversight, and aggregate reporting as
9 authorized by subsection E of this section; and

10 2. Shall not be subject to the Oklahoma Open Records Act,
11 except for aggregate, de-identified reports as described in
12 subsection E of this section.

13 D. Nothing in this act shall be construed to require the
14 registry to collect, store, or display individual consumer
15 diagnosis, payor information, or preauthorization status, and the
16 registry shall not be used as a clinical record. Any consumer-
17 specific clinical information exchanged for purposes of placement
18 shall be transmitted outside the registry in a manner consistent
19 with applicable privacy laws.

20 E. The Department of Mental Health and Substance Abuse Services
21 may publish aggregate, de-identified reports regarding system
22 capacity, utilization, and placement timeliness.

1 SECTION 8. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-111.8 of Title 43A, unless
3 there is created a duplication in numbering, reads as follows:

4 Within six (6) months of the effective date of this act, the
5 Department of Mental Health and Substance Abuse Services shall,
6 subject to the availability of funding, issue a request for
7 proposals for the development and implementation of the behavioral
8 health vacancy registry for the purpose of procuring any technology,
9 platform, software, or vendor services necessary to implement, host,
10 operate, or maintain the registry. Such request for proposals and
11 the procurement process shall be conducted in accordance with the
12 Oklahoma Central Purchasing Act, Section 34.12 of Title 62 of the
13 Oklahoma Statutes, and any other applicable state procurement laws.
14 The Department shall:

15 1. Prioritize vendors on a best-value basis including, but not
16 limited to, total cost of ownership, implementation timeline,
17 scalability, data security, interoperability, ongoing support, and
18 long-term sustainability;

19 2. Give preference to proposals that provide the required
20 technology and services at the lowest overall cost, including
21 proposals offered at no cost to the state or participating
22 providers, provided that such proposals meet all functional,
23 security, and compliance requirements of this act. The Department
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1 shall not require, as a condition of award, functionality beyond the
2 requirements of this act;

3 3. Allow proposals funded in whole or in part through gifts,
4 grants, donations, or in-kind contributions of hardware, software,
5 licensing, hosting, or services. The Department may accept such
6 gifts, grants, or donations, subject to applicable law, provided
7 that acceptance does not compromise data ownership, security,
8 independence, or operational control of the registry; and

9 4. Not expend state-appropriated funds for software
10 development, acquisition, licensing, or subscription to implement
11 the registry unless, after completion of the competitive procurement
12 process required by this section, the Department determines that no
13 proposal meeting the requirements of this act is available at no
14 cost to the state.

15 SECTION 9. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1-111.9 of Title 43A, unless
17 there is created a duplication in numbering, reads as follows:

18 The Board shall promulgate rules necessary to implement the
19 provisions of this act including, but not limited to, reporting
20 standards, update intervals, placement priority standards, queue
21 management practices, access controls, documentation of denials,
22 reservation time frames, forensic module standards, compliance
23 procedures, and technical and operational standards for hospitals
24 and hospital-based psychiatric units that elect to participate.

SECTION 10. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives